CHAPTER 91 Landmark Judgements and Their Impact

Romesh Thappar Case (1950)

Name of the Case	Romesh Thappar vs. State of Madras
Year of Judgement	1950
Popular Name	Cross Roads case
Related Topic/Issue	Freedom of the press
Related Article/Schedule	19

Freedom of circulation: Supreme Court Judgement: It held that the freedom of speech and expression under Article 19(1)(a) includes freedom of propagation of ideas, and that freedom is ensured by the freedom of circulation. It also ruled that without liberty of circulation, the publication would be of little value. Therefore, the order of the Madras government banning the entry and circulation of the weekly English Journal Cross Roads published at Bombay was declared as unconstitutional and void. The Madras government had issued the banning order under the provisions of Section 9 (1-A) of the Madras Maintenance of Public Order Act, 1949. The Supreme Court observed that the freedom of speech and freedom of the press lay at the foundation of all democratic organisations, because without free political discussion no public education (which is so essential for the proper functioning of the process of popular government) is possible.

Public order – 1st Amendment: Impact of the Judgement: As a sequel to this judgement, the 1st Amendment Act (1951) added "public order" as a reasonable restriction under Article 19(2) on the freedom of speech and expression. The Supreme Court held that restrictions on the freedom of speech and expression could be imposed only on the grounds mentioned in Article 19(2). Accordingly, the court refused to permit restrictions on the ground of public order because it was not mentioned in Article 19(2). It said that the ordinary or local breaches of public order were no grounds for imposing restrictions on the freedom of speech and expression. It further observed that the term "public order" has wide connotation and signifies that state of tranquility which prevails among the members of political society as a result of internal regulations enforced by the government which they have established.

A.K. Gopalan Case (1950)

Name of the Case	A.K. Gopalan vs. State of Madras
Year of Judgement	1950
Popular Name	Preventive Detention case
Related Topic/Issue	Procedure established by law
Related Article/Schedule	21 & 22

Personal liberty = physical body: Supreme Court Judgement: It invalidated Section 14 of the impugned Preventive Detention Act (1950) on the ground that it violates the fundamental right guaranteed under Article 22. It said that the omission of this section will not change the nature or the structure or the object of the legislation. Therefore, it declared the rest of the Act as valid and effective. Further, it held that the expression 'personal liberty' under Article 21 means liberty of the physical body, i.e., freedom from physical restraint or detention. Moreover, it ruled that Article 21 is a protection only against the executive and not against the legislature.

Textualist approach – no due process: Impact of the Judgement: In this judgement, the Supreme Court has taken a narrow (restrictive) interpretation of the Article 21. In other words, the Supreme Court has adopted a 'textualist approach' in the interpretation of the constitution. It held that the word 'law' in Article 21 was used in the sense of state-made law and not in the sense of jus naturale i.e., the principles of natural justice. Hence, it declared that the expression 'procedure established by law' in Article 21 cannot be interpreted to mean the same thing as that of the American expression of the 'due process of law'. This declaration, in effect, amounted to holding that the protection under Article 21 is available only against arbitrary executive action and not from arbitrary legislative action. This judgement held the field for nearly three decades (1950 to 1978). This judicial interpretation reached its logical end in A.D.M. Jabalpur case[1] (1976). But, in Maneka Gandhi case[2] (1978), the Supreme Court overruled the above judgement by taking a wider interpretation of the Article 21.

1 A.D.M. Jabalpur vs. Shivakant Shukla (1976). This case is popularly known as the Habeas Corpus case.

2 Maneka Gandhi vs. Union of India (1978). This case is popularly known as the Personal Liberty case.

Champakam Dorairajan Case (1951)

Name of the Case	State of Madras vs. Champakam Dorairajan
Year of Judgement	1951
Popular Name	—
Related Topic/Issue	Communal reservation in admission to educational institutions
Related Article/Schedule	15, 29 & 46

DPSP subsidiary to FRs: Supreme Court Judgement: It affirmed the judgement of the Madras High Court. It struck down the order issued by the Madras Government (known as the Communal GO) that had provided for the proportionate reservation of seats in the government medical and engineering colleges for different communities with the object of promoting the educational interest of the backward classes under Article 46. It held that the communal GO was based on religion, race and caste and hence was violative of Articles 15(1) and 29(2). Further, it declared that the directive principles cannot in any way override or abridge the fundamental rights. It also stated that the directive principles have to conform to and run as subsidiary to the fundamental rights.

Article 15(4) – 1st Amendment: Impact of the Judgement: This judgement led to the insertion of a new Clause (4) in Article 15 by the 1st Amendment Act (1951). This clause permits the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the SCs and STs. In this way, the effect of this judgement was nullified.

Landmark Judgements – 2 (1951–1961)

Shankari Prasad Case (1951)

Name of the Case	Shankari Prasad vs. Union of India
Year of Judgement	1951
Popular Name	—
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

FRs amendable: Supreme Court Judgement: It held that the parliament's amending power under Article 368 also includes the power to amend the fundamental rights guaranteed in Part III of the Constitution. Further, it said that a constitutional amendment act enacted to abridge or take away the fundamental rights is not void under Article 13(2). Therefore, the court upheld the validity of the 1st Amendment Act (1951), which curtailed the right to property by inserting Articles 31A and 31B.

Legislative vs constituent law: Impact of the Judgement: In this judgement, the Supreme Court made a distinction between the legislative law (ordinary law) and the constituent law (constitutional amendment law). In other words, the court has separated the ordinary legislative power of the Parliament from that of its constituent power. It held that the word 'law' in Article 13(2) refers to an ordinary law and does not include a constituent law made under Article 368. Hence, it laid down that the Parliament can amend any provision of the constitution and rejected the view that the Fundamental Rights are inviolable. This judgement held the field for one and half decade (1951 to 1967). The Supreme Court re-affirmed the above judgement in the Sajjan Singh case[3] (1964). But the court overruled the above stand in the Golak Nath case[4] (1967).

3 Sajjan Singh vs. State of Rajasthan (1964).

4 I.C. Golak Nath vs. State of Punjab (1967).

Berubari Union Case (1960)

Name of the Case	Berubari Union vs. Unknown[5]
Year of Judgement	1960
Popular Name	—
Related Topic/Issue	Cession of Indian Territory to a foreign state
Related Article/Schedule	3, 368 & First Schedule

Cession needs Art. 368 amendment: Supreme Court Judgement: It ruled that the power of Parliament under Article 3 to diminish the area of a state does not cover cession of Indian territory to a foreign country. It stated that Article 3 deals with the internal adjustment inter se of the territories of the constituent states of the Indian Union. Hence, Indian territory can be ceded to a foreign state only by an amendment of the constitution under Article 368, providing for the alteration of the First Schedule. Further, the court held that the Preamble is not a part of the constitution.

9th Amendment – Berubari transfer: Impact of the Judgement: This judgement led to the enactment of the 9th Amendment Act (1960). This amendment gave effect to the transfer of certain territory known as Berubari Union (West Bengal) to Pakistan. This transfer was done as per the provisions of Indo-Pak Agreement (Nehru-Noon Agreement) of 1958, relating to Berubari Union and Exchange of Cooch-Behar Enclaves.

5 Reference by the President of India under Article 143 of the constitution on the implementation of the Indo-Pak Agreement of 1958, relating to Berubari Union and Exchange of Cooch-Behar Enclaves (1960).

K.M. Nanavati Case (1961)

Name of the Case	K.M. Nanavati vs. State of Maharashtra
Year of Judgement	1961
Popular Name	—
Related Topic/Issue	Jury System of trial
Related Article/Schedule	—

Conviction upheld: Supreme Court Judgement: It affirmed the judgement of the Bombay High Court. It held that the conviction of the accused Nanavati under Section 302 of the Indian Penal Code and the sentence of life imprisonment passed on him by the High Court are correct. He was awarded the punishment for the murder of his wife's paramour.

End of jury trials: Impact of the Judgement: This judgement brought out the shortcomings in the working of Jury System and led to its abolition. However, even after this case also, there were some cases of jury trials in the country. Finally, the new Code of Criminal Procedure, 1973 completely removed the system of trial by jury in India. Further, the sentenced Nanavati, after spending 3 years in prison, was granted pardon by the Governor.

Landmark Judgements – 3 (1967–1975)

I.C. GOLAK NATH CASE (1967)

Name of the Case	I.C. Golak Nath vs. State of Punjab
Year of Judgement	1967
Popular Name	—
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

FRs not amendable – prospective overruling: Supreme Court Judgement: It overruled its two earlier verdicts delivered in the Shankari Prasad case[6] (1951) and the Sajjan Singh case[7] (1964). It held that the amending power under Article 368 can not be used to abridge or take away the fundamental rights guaranteed in Part III of the constitution. Further, it said that a constitutional amendment act is a law within the meaning of Article 13(2). But, the court ruled that the 1st Amendment Act (1951), the 4th Amendment Act (1955) and the 17th Amendment Act (1964) will continue to be valid for the future. In other words, the Supreme Court applied the doctrine of prospective overruling and declared that this judgement will have only prospective operation and not retrospective operation.

24th Amendment response: Impact of the Judgement: As a sequel to this judgement, the 24th Amendment Act (1971) was enacted. This amendment provided that the Parliament has the power to amend any part of the constitution including the fundamental rights in accordance with the procedure laid down in Article 368. It also provided that a constitutional amendment act will not be a law within the meaning of Article 13(2). Thus, this amendment was aimed at overriding the above judgement.

6 Shankari Prasad vs. Union of India (1951).

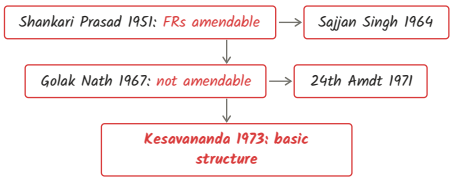
7 Sajjan Singh vs. State of Rajasthan (1964).

Kesavananda Bharati Case (1973)

Name of the Case	Kesavananda Bharati vs. State of Kerala
Year of Judgement	1973
Popular Name	Fundamental Rights case
Related Topic/Issue	Parliament's power to amend the constitution
Related Article/Schedule	13 & 368

Basic structure doctrine: Supreme Court Judgement: It overruled its earlier verdict delivered in the Golak Nath case[8] (1967). It held that the Parliament, by exercising its constituent power under Article 368, can amend any or all the provisions of the Constitution including those relating to the fundamental rights, but except the 'basic structure' of the constitution. It upheld the validity of the 24th Amendment Act (1971) which inserted Clause (4) in Article 13 and Clause (3) in Article 368. Further, the court held that Sections 2(a) and 2(b) of the 25th Amendment Act (1971) as valid. On the other hand, it declared the first part of Section 3 of the 25th Amendment Act (1971) as valid and the second part[9], as invalid. Moreover, the court validated the 29th Amendment Act (1971).

Limit on amending power: Impact of the Judgement: This judgement led to the emergence of the doctrine of basic structure of the constitution as a limitation on the amending power of the Parliament. The Supreme Court has applied this doctrine in subsequent cases in examining and deciding the validity of amendments to the constitution. It also enlarged the list of elements of the basic structure in various cases. Further, as a follow-up of this judgement, the 42nd Amendment Act (1976) gave the Parliament an unlimited and uncontrolled power to amend the constitution. This is explained below in the next case.



8 I.C. Golak Nath vs. State of Punjab (1967).

9 The second part stood as follows: "No law containing a declaration that it is for giving effect to such policy shall be called in question

Indira Nehru Gandhi Case (1975)

Name of the Case	Indira Nehru Gandhi vs. Raj Narain
Year of Judgement	1975
Popular Name	Election case
Related Topic/Issue	Basic structure of the constitution
Related Article/Schedule	329A (Repealed)[9a]

Art. 329A(4) struck down: Supreme Court Judgement: It reaffirmed the applicability of the doctrine of basic structure of the constitution. Accordingly, it struck down clause (4) of Article 329A that was inserted by the 39th Amendment Act (1975). This provision had kept the election disputes involving the Prime Minister and the Speaker of Lok Sabha outside the jurisdiction of all courts. The Supreme Court held that this provision was beyond the amending power of the Parliament because it affected the basic structure of the constitution.

42nd Amendment – Art. 368(4), (5): Impact of the Judgement: Following the above two judgements of the Supreme Court in Kesavananda Bharati and Indira Nehru Gandhi cases, the 42nd Amendment Act (1976) inserted two new Clauses (4) and (5) in Article 368. The Clause (4) provided that an amendment of the Constitution (including the provisions relating to the fundamental rights) made under Article 368 shall not be called in question in any court on any ground. While the Clause (5) declared that there shall be no limitation whatever on the constituent power of Parliament under Article 368. Thus, it is clear that these two Clauses were inserted in order to dilute the above doctrine of basic structure that has been held to be a limitation on the amending power of the Parliament.

Landmark Judgements – 4 (1976–1980)

A.D.M. Jabalpur Case (1976)

Name of the Case	A.D.M. Jabalpur vs. Shivakant Shukla
Year of Judgement	1976
Popular Name	Habeas Corpus case
Related Topic/Issue	Right to life and personal liberty during the emergency
Related Article/Schedule	21 & 359

Habeas corpus suspended: Supreme Court Judgement: It held that Article 21 is the sole repository of the right to life and personal liberty against the state. If the enforcement of that right is suspended by a Presidential Order under Article 359, then the detenu will have no locus standi to a writ petition for challenging the legality of his detention. In view of the Presidential Order dated 27th June 1975, no person has any locus standi to move any petition before a High Court under Article 226 for a writ of habeas corpus or any other writ to challenge the legality of a detention order on any ground. Accordingly, the court upheld the constitutional validity of Section 16A(9) of the Maintenance of Internal Security Act (MISA), 1971.

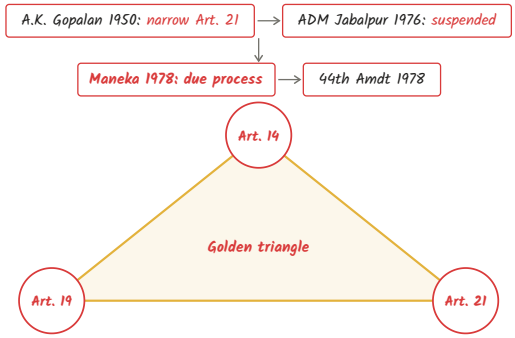
44th Amendment – Art. 21 non-suspendable: Impact of the Judgement: In this case, the Supreme Court took a restrictive meaning of right to life and personal liberty under Article 21 and gave a seriously flawed judgement. The court argued that any claim to a writ of habeas corpus on any ground amounted to the enforcement of the right to life and personal liberty which had been suspended by the Presidential Order. Consequently, it failed to fulfill its role as the defender and guarantor of the fundamental rights of the citizens during the period of emergency (1975–77). Later, the 44th Amendment Act (1978) amended Article 359 to the effect that the enforcement of the right to life and personal liberty under Article 21 can not be suspended by a Presidential Order. In view of this amendment, the judgement delivered in this case is no longer a good law and is left only of academic importance.

Maneka Gandhi Case (1978)

Name of the Case	Maneka Gandhi vs. Union of India
Year of Judgement	1978
Popular Name	Personal Liberty case
Related Topic/Issue	Procedure established by law
Related Article/Schedule	21

Just, fair and reasonable procedure: Supreme Court Judgement: It overruled its earlier judgement delivered in the A.K. Gopalan case[10] (1950). It declared section 10(3)(c) of the Passport Act (1967) as not violative of Articles 14, 19(1)(a) or (g) and 21 and hence, valid. But, it laid down the following propositions: (a) Articles 14, 19 and 21 are not mutually exclusive which means that a law depriving a person of 'personal liberty' has not only to stand the test of Article 21 but it must also stand the test of Articles 14 and 19; (b) The expression 'personal liberty' in Article 21 is of the widest amplitude and it covers a variety of rights which go to constitute the personal liberty of a man and some of them have been raised to the status of distinct fundamental rights and given additional protection under Article 19; (c) The right to life under Article 21 includes all those aspects of life which go to make a man's life meaningful, complete and worth living. Further, the right to 'live' is not merely confined to physical existence but it includes within its ambit the right to live with human dignity; and (d) The expression 'procedure established by law' in Article 21 means that the procedure prescribed by law must be just, fair and reasonable and not arbitrary, fanciful or oppressive. In order that the procedure is just, fair and reasonable, the procedure should confirm to the principles of "natural justice".

Due process & golden triangle: Impact of the Judgement: By taking a wider interpretation of the Article 21, this judgement led to the following: (i) It introduced the American concept of 'due process of law' in Indian judicial interpretation; (ii) It firmly established the 'golden triangle' rule i.e., inter-relation of Articles 14, 19 and 21; and (iii) It expanded the scope of Article 21 and paved the way for declaring a number of rights as integral part of Article 21 in the subsequent cases.



Articles 14, 19 and 21 are not mutually exclusive – a law depriving personal liberty must stand the test of all three (1978)

Bachan Singh Case (1980)

Name of the Case	Bachan Singh vs. State of Punjab
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Constitutional validity of death penalty
Related Article/Schedule	19 & 21

Death penalty valid: Supreme Court Judgement: It ruled that the provision of death penalty (capital punishment) in Section 302 of the Indian Penal Code, as an alternative punishment for murder, is not unreasonable. Hence, this provision does not violate the letter or the ethos of Article 19. It stated that Article 19(1) does not guarantee the activity of committing a murder. Further, it held that the provision of death penalty also does not violate Article 21. It observed that Article 21 recognises the right of the State to deprive a person of his life or personal liberty in accordance with fair, just and reasonable procedure established by a valid law. However, the court held that the death penalty for murder should be an exception rather than the rule. It said that this penalty must be confined to the 'rarest of rare cases', when the alternative option is unquestionably foreclosed. Further, it said that while making the choice of death penalty, the exceptional and grave circumstances of both the crime as well as the criminal should be taken into consideration.

Rarest of rare doctrine: Impact of the Judgement: This judgement led to the laying down of the doctrine of 'rarest of rare cases' for awarding the death penalty. This doctrine influenced the later judgements delivered by the Supreme Court in various subsequent cases.

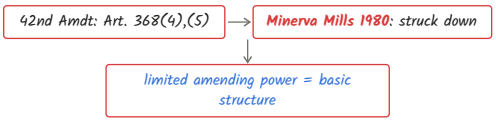
Landmark Judgements – 5 (1980–1985)

Minerva Mills Case (1980)

Name of the Case	Minerva Mills vs. Union of India
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Basic structure of the constitution
Related Article/Schedule	31C & 368

Limited amending power is basic structure: Supreme Court Judgement: It invalidated Clauses (4) and (5) of Article 368 which were inserted by the 42nd Amendment Act (1976). Similarly, the amendment made to Article 31C by the 42nd Amendment Act (1976) was also declared as unconstitutional. The Court said that the above changes made by the 42nd Amendment Act (1976) destroyed the basic structure of the constitution. It held the limited power of Parliament to amend the constitution, judicial review and the harmony and balance between fundamental rights and directive principles as basic features of the constitution.

42nd Amendment dilution nullified: Impact of the Judgement: This judgement has nullified the attempt to dilute the doctrine of the basic structure by the 42nd Amendment Act (1976). This amendment had conferred an unlimited and uncontrolled amending power on the Parliament. The Supreme Court held that the Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the constitution or to destroy its basic features. Further, this amendment also gave precedence to all directive principles over the fundamental rights conferred by Articles 14, 19 and 31II. The Supreme Court, in this regard, held that anything that destroys the balance between the fundamental rights and the directive principles will ipso facto destroy an essential element of the basic structure of the constitution.



Waman Rao Case (1980)

Name of the Case	Waman Rao vs. Union of India
Year of Judgement	1980
Popular Name	—
Related Topic/Issue	Judicial review of the ninth schedule
Related Article/Schedule	368 & Ninth Schedule

Ninth Schedule – 24 April 1973 cut-off: Supreme Court Judgement: It held that all the amendments to the constitution which were made before 24 April 1973 (the date on which the court delivered its verdict in the Kesavananda Bharati case) and by which the Ninth Schedule was amended from time to time by the inclusion of various Acts and Regulations therein are valid. But, all the amendments made after 24 April 1973 are open to challenge on the ground that they are beyond the constituent power of the Parliament, since they damage the basic structure of the Constitution. In other words, the various amendments by which additions were made to the Ninth Schedule after 24 April 1973 will be valid only if they do not damage the basic structure of the constitution.

Shah Bano Case (1985)

Name of the Case	Mohd. Ahmed Khan vs. Shah Bano
Year of Judgement	1985
Popular Name	—
Related Topic/Issue	Maintenance of a divorced Muslim wife
Related Article/Schedule	—

Maintenance under Sec. 125 CrPC: Supreme Court Judgement: It upheld the judgement of the High Court of Madhya Pradesh. It ruled that a Muslim husband is liable to pay maintenance to the divorced wife beyond the period of iddat. It held that Section 125 of the Code of Criminal Procedure, 1973 is secular in character and applies to all religions and communities. It said that this section would prevail over the personal law, in case of a conflict between the two. It also said that Mahr (or dower) does not absolve a Muslim husband from payment of maintenance to the divorced wife. Further, it also emphasized that a uniform civil code will help the cause of national integration by removing disparate loyalties to laws which have conflicting ideologies.

Muslim Women Act 1986: Impact of the Judgement: This judgement led to the enactment of a new law called the Muslim Women (Protection of Rights on Divorce) Act, 1986. This Act overturned the above judgement by allowing the payment of maintenance to a divorced wife only during the period of iddat. In Danial Latifi case[12] (2001), the Supreme Court upheld the constitutional validity of this Act but held that a Muslim husband is liable to pay the maintenance to the divorced wife even after the period of iddat.

Landmark Judgements – 6 (1986–1992)

D.C. Wadhwa Case (1986)

Name of the Case	D.C. Wadhwa vs. State of Bihar
Year of Judgement	1986
Popular Name	—
Related Topic/Issue	Ordinance-making power of the Governor
Related Article/Schedule	213

Re-promulgation is fraud on Constitution: Supreme Court Judgement: It pointed out that between 1967-1981, the Governor of Bihar promulgated 256 ordinances and all these were kept in force for periods ranging from 1 to 14 years by repromulgation from time to time. It held that the exceptional power under Article 213 cannot be used as a substitute for the law-making power of the State Legislature. It ruled that such a practice would be a 'subversion of the democratic process' and a 'fraud on the constitution'. It opined that the ordinancemaking power is meant for meeting an extraordinary situation and it cannot be allowed to be 'perverted to serve political ends'. Accordingly, it declared the re-promulgated Bihar Intermediate Education Council Ordinance, 1985 as unconstitutional and invalid.

Check on ordinance raj: Impact of the Judgement: This judgement clearly exposed the fact that the ordinance-making power can be misused by the executive government.

M.C. Mehta Case (1986)

Name of the Case	M.C. Mehta vs. Union of India
Year of Judgement	1986
Popular Name	Oleum Gas Leak case
Related Topic/Issue	Power of the Supreme Court to award compensation
Related Article/Schedule	21 & 32

Article 32 – remedial power: Supreme Court Judgement: It held that its power under Article 32 is not only injective in ambit, i.e., preventing the infringement of fundamental right but also remedial in scope and providing relief against a breach of the fundamental right already committed. It stated that its power to grant such remedial relief may include the power to award compensation in appropriate cases. It clarified that the infringement of the fundamental right must be gross and patent i.e., incontrovertible and ex facie glaring. It observed that the instant applications for compensation are for the enforcement of the fundamental right to life enshrined in Article 21 and hence, they are maintainable under Article 32.

Absolute (no-fault) liability: Impact of the Judgement: This judgement led to the expansion of the ambit of Environmental Law in the country. It introduced the new principle of absolute liability (no-fault liability) in the place of the earlier principle of strict liability.

Kihoto Hollohan Case (1992)

Name of the Case	Kihoto Hollohan vs. Zachillhu
Year of Judgement	1992
Popular Name	Defection case
Related Topic/Issue	Validity of anti- defection law
Related Article/Schedule	368 & Tenth Schedule

Paragraph 7 invalid – rest of Tenth Schedule upheld: Supreme Court Judgement: It declared paragraph 7 of the Tenth Schedule (which was inserted by the 52nd Amendment Act, 1985) as unconstitutional for violating the provision under Article 368(2). It held that paragraph 7 required to be ratified by at least half of the State Legislatures for excluding the jurisdiction of the Supreme Court under Article 136 and the High Courts under Article 226. However, the court upheld the validity of the remaining part of the Tenth Schedule.

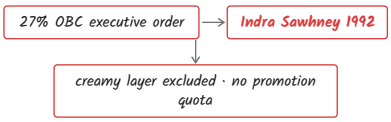
Landmark Judgements – 7 (1992–1993)

Indra Sawhney Case (1992)

Name of the Case	Indra Sawhney vs. Union of India
Year of Judgement	1992
Popular Name	Mandal case
Related Topic/Issue	Reservation for OBCs in government jobs
Related Article/Schedule	16

27% OBC quota – with conditions: Supreme Court Judgement: It upheld the validity of the impugned executive order which provided 27% reservation of jobs to the OBCs under the provision of Article 16(4), with certain conditions like exclusion of creamy layer, no reservation in promotions, maximum reservation should not exceed 50%, ceiling of 50% on reservation in backlog vacancies, no relaxation in qualifying marks for promotions and so on. On the other hand, it invalidated another impugned executive order which provided 10% additional reservation of jobs for other economically backward sections who are not covered by any existing schemes of reservation.

Creamy layer & National Commission for BCs: Impact of the Judgement: This judgement led to the following: (i) Appointment of the Ram Nandan Committee to identify the creamy layer among the OBCs; (ii) Establishment of the statutory National Commission for BCs[13] to examine the complaints of under-inclusion, over-inclusion or non-inclusion of any class of citizens in the list of BCs; and (iii) Enactment of five amendment acts, namely, the 76th Amendment Act, 1994 that has placed the Tamil Nadu reservation act in the Ninth Schedule; the 77th Amendment Act, 1995 that has nullified the ruling with regard to reservation in promotions; the 81st Amendment Act, 2000 that has nullified the ruling with regard to backlog vacancies; the 82nd Amendment Act, 2000 that has provided for relaxations in qualifying marks and standards of evaluation in matters of reservation in promotions; and the 85th Amendment Act, 2001 that has provided for consequential seniority in matters of promotion by virtue of rule of reservation for the SCs and STs.



Mohini Jain Case (1992)

Name of the Case	Mohini Jain vs. State of Karnataka
Year of Judgement	1992
Popular Name	Capitation Fee case
Related Topic/Issue	Right to education
Related Article/Schedule	21 & 41

Right to education under Art. 21: Supreme Court Judgement: It ruled that the right to education is a fundamental right under Article 21. In fact, it declared that this right extends up to any level including the professional education like engineering and medicine. It observed that the right to life under Article 21 and the dignity of an individual cannot be assured unless it is accompanied by the right to education. It argued that without making right to education under Article 41 a reality, the fundamental rights enshrined under Part III shall remain beyond the reach of the large majority which is illiterate. It thus declared that the right to education is concomitant to the fundamental rights. It further observed that the state is under a constitutional mandate to provide educational institutions at all levels for the benefit of the citizens. It declared that charging capitation fee for admission amounted to a patent denial of a citizen's right to education and is wholly arbitrary and as such violative of Article 14. It described the capitation fee as nothing but a price for selling education. It opined that the concept of "teaching shops" is contrary to the constitutional scheme.

Basis for Unni Krishnan: Impact of the Judgement: This judgement formed the basis for the later judgement delivered by the Supreme Court in the Unni Krishnan case[14] (1993) that led to the passing of the 86th Amendment Act (2002). In this case, the Supreme Court was asked to examine the correctness of the Mohini Jain's judgement. The petitioners contended that if the Mohini Jain's judgement was followed by the state governments, they would have to close down their engineering and medical colleges. In this later judgement, the Supreme Court party upheld and partly overruled the Mohini Jain's judgement. This is explained below in the next case.

Unni Krishnan Case (1993)

Name of the Case	Unni Krishnan vs. State of A.P.
Year of Judgement	1993
Popular Name	—
Related Topic/Issue	Right to education
Related Article/Schedule	21 & 45

Free education till 14: Supreme Court Judgement: It held that the right to education is a fundamental right under Article 21 and that this right directly flows from the right to life. But, it declared that only children have right to free education until they complete the age of 14 years. After that age, the obligation of the state to provide education depends on its economic capacity and development. The court also said that the state is obliged to follow directions contained in Article 45 which originally (prior to its amendment in 2002) provided for free and compulsory education for all children upto the age of 14 years. The Article 21 is to be construed in the light of Articles 41, 45 and 46 contained in Part IV dealing with the Directive Principles of State Policy. The obligations created by Articles 41, 45 and 46 can be discharged by the state either by establishing its own institutions or by aiding, recognising or granting affiliation to private educational institutions. Further, the court held that the private unaided educational institutions running professional courses like engineering and medical are entitled to charge a higher fee than that of the government institutions. But such a fee cannot exceed the ceiling fixed in this regard and commercialisation of education is not permissible.

86th Amendment – Art. 21A: Impact of the Judgement: Subsequent to this judgement, the 86th Amendment Act (2002) was passed. This amendment added a new Article 21A which makes the right to education an independent fundamental right. This Article declares that the state shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the state may determine. To give effect to this Article, the Parliament enacted the Right of children to Free and Compulsory Education (RTE) Act, 2009.

Landmark Judgements – 8 (1993–1997)

Supreme Court Advocates-on-Record Association Case (1993)

Name of the Case	Supreme Court Advocates- on-Record Association vs. Union of India
Year of Judgement	1993
Popular Name	Second Judges case
Related Topic/Issue	Appointment of Supreme Court and High Court Judges
Related Article/Schedule	124 & 217

Collegium – CJI primacy: Supreme Court Judgement: It overruled its earlier judgement delivered in the S.P. Gupta case[15] (1981) which is popularly known as the First Judges case. It held that the judges of the Supreme Court and High Courts shall be appointed by the President in accordance with the advice tendered by the Chief Justice of India. But the Chief Justice of India shall tender such advice after taking into consideration the views of two of his senior most colleagues. This means that the court has changed the meaning of the word 'consultation' in Articles 124 (2) and 217(1) to that of 'concurrence'. Further, it held that the senior-most judge of the Supreme Court should be appointed as the Chief Justice of India.

Memorandum of Procedure: Impact of the Judgement: Consequent to this judgement and also the Advisory Opinion tendered in the Third Judges case[16] (1998), a Memorandum of Procedure for appointment of judges to the Supreme Court and the High Courts was formulated, and is being followed for appointment. This procedure, invented by the judiciary, is known as the "collegium system".

S.R. Bommai Case (1994)

Name of the Case	S.R. Bommai vs. Union of India
Year of Judgement	1994
Popular Name	—
Related Topic/Issue	President's rule
Related Article/Schedule	356

Judicial review of President's Rule: Supreme Court Judgement: It upheld the constitutional validity of the imposition of President's rule under Article 356 in Madhya Pradesh, Himachal Pradesh and Rajasthan in 1992. On the other hand, it declared the imposition of President's Rule in Nagaland in 1988, Karnataka in 1989 and Meghalaya in 1991 as unconstitutional and invalid. Further, it laid down the following propositions with respect to Article 356: (a) The validity of the proclamation issued by the President under Article 356(1) is subject to judicial review; (b) Burden lies on the Union Government to prove that the relevant material existed to justify the proclamation; (c) Article 74(2) is not a bar against the scrutiny of the material on the basis of which the President had arrived at his satisfaction; (d) If the proclamation issued by the President is held invalid, then notwithstanding the fact that it is approved by both the Houses of Parliament, it will be open for the court to restore the Legislative Assembly and the Ministry; and (e) Secularism is a part of the basic structure of the constitution and hence, the anti-secular acts of a State Government can lawfully be deemed to be a ground for the imposition of the President's Rule.

Check on misuse of Art. 356: Impact of the Judgement: This judgement placed a check on the arbitrary exercise of power under Article 356 by the Centre for the purpose of imposing President's Rule in the States.

Vishaka Case (1997)

Name of the Case	Vishaka vs. State of Rajasthan
Year of Judgement	1997
Popular Name	—
Related Topic/Issue	Sexual harassment of women at workplace
Related Article/Schedule	15 & 21

Sexual harassment violates Arts. 15 & 21: Supreme Court Judgement: It held that the sexual harassment of women at the workplace is a violation of Articles 15 and 21. It said that it is the duty of the employer or other responsible person in workplaces or other institutions, whether public or private, to prevent sexual harassment of working women. It gave detailed directions on the subject, whose guidelines are to be strictly observed by all employees, public or private, until suitable legislation is enacted on the subject.

Vishaka Guidelines: Impact of the Judgement: By laying down a set of guidelines (which came to be known as the 'Vishaka Guidelines'), this judgement filled the legislative vacuum on the subject. Till this time, there was no domestic law to address this issue except a few provisions of the Indian Penal Code. Later, the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 was enacted to provide protection against sexual harassment of women at workplace and for the prevention and redressal of complaints of sexual harassment.

Landmark Judgements – 9 (1997–2002)

Vineet Narain Case (1997)

Name of the Case	Vineet Narain vs. Union of India
Year of Judgement	1997
Popular Name	Jain Hawala case
Related Topic/Issue	Autonomy and efficient functioning of CBI
Related Article/Schedule	—

CVC supervision of CBI: Supreme Court Judgement: It directed that statutory status should be conferred upon the Central Vigilance Commission (CVC). It also issued directions to make the Central Bureau of Investigation (CBI) an autonomous body so that it can function effectively and efficiently and is viewed as a non-partisan agency. It issued the similar directions with respect to the Enforcement Directorate (ED). Further, it also struck down the validity of the arbitrary provision of Single Directive that required the CBI to obtain the prior permission of the Central Government before conducting an investigation against the officers of the rank of Joint Secretary and above.

CVC Act 2003: Impact of the Judgement: This judgement led to the enactment of the CVC Act, 2003 that conferred the Statutory Status upon the CVC. Under this Act, the superintendence of the CBI in so far as it relates to the investigation of corruption cases has been vested in the CVC. Further, this Act also reinstated the provision of Single Directive that was again declared invalid by the Supreme Court in 2014 on the ground that it is violative of Article 14.

Association for Democratic Reforms Case (2002)

Name of the Case	Union of India vs. Association for Democratic Reforms
Year of Judgement	2002
Popular Name	Poll Reforms case
Related Topic/Issue	Criminalization of politics
Related Article/Schedule	19

Voters' right to know: Supreme Court Judgement: It held that a voter has a right to know about the antecedents including criminal past of his candidate as part of his right under Article 19(1)(a) i.e., freedom of speech and expression. Voter's speech or expression in case of election would include casting of votes, that is to say voter speaks out or expresses by casting vote. For this purpose, information about the candidate to be selected is a must. Democracy cannot survive without free and fair elections, without free and fairly informed voters. Therefore, the court directed the Election Commission to make it mandatory for the candidates to furnish information on the following aspects: (a) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past – if any, whether he is punished with imprisonment or fine; (b) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof; (c) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependents; (d) Liabilities, if any, particularly whether there are any over dues of any public financial institution or government dues; and (e) The educational qualifications of the candidate.

Candidate disclosure order (2003): Impact of the Judgement: As a sequel to this judgement, the Election Commission issued in 2003 an order[17] directing every candidate seeking election to the Parliament or a State Legislature to furnish on his nomination paper the information on the above (a) to (e) matters. Furnishing of any false information in the affidavit is now an electoral offence.

T.M.A. PAI Foundation Case (2002)

Name of the Case	T.M.A. Pai Foundation vs. State of Karnataka
Year of Judgement	2002
Popular Name	—
Related Topic/Issue	Rights of minority educational institutions
Related Article/Schedule	29 & 30

Minority institutions' autonomy: Supreme Court Judgement: It laid down the following propositions with respect to the rights of and the permissible restrictions upon minority educational institutions (both aided and unaided): (a) Linguistic and religious minorities are covered by the expression "minority" under Article 30. Since reorganization of the states in India has been on linguistic lines, therefore, for the purpose of determining the minority, the unit will be the State and not the whole of India. Thus, religious and linguistic minorities, who have been put at par in Article 30, have to be considered state-wise; (b) Article 30(1) gives religious and linguistic minorities the right to establish and administer educational institutions of their choice. The use of the words "of their choice" indicates that even professional educational institutions would be covered by Article 30; (c) Admission of students to unaided minority educational institutions, cannot be regulated by the State government or the university (except for providing the qualifications and minimum conditions of eligibility in the interest of academic standards); (d) The right to administer, not being an absolute one, there could be regulatory measures for ensuring educational standards and maintaining excellence thereof; (e) The moment aid is received by a minority educational institution, it would be governed by Article 29(2) and would then not be able to refuse admission on grounds of religion, race, caste, language or any of them. In other words, it cannot then give preference to students of its own community; (f) In the case of aided professional institutions, it can also be stipulated that passing of common entrance test held by the state agency is necessary to seek admission; and (g) A minority institution may have its own procedure and method of admission as well as selection of students, but such procedure must be fair and transparent and selection of students in professional and higher educational colleges should be on the basis of merit.

93rd Amendment – Art. 15(5): Impact of the Judgement: In order to overcome the effect of this judgement and also the judgement delivered in the Inamdar case[18] (2005), the 93rd Amendment Act (2005) was enacted. This amendment inserted a new Clause (5) in Article 15. This clause empowered the state to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their admission to educational institutions. This provision also includes private educational institutions, whether aided or unaided by the state, except the minority educational institutions under Article 30(1).

Landmark Judgements – 10 (2004–2006)

Naveen Jindal Case (2004)

Name of the Case	Union of India vs. Naveen Jindal
Year of Judgement	2004
Popular Name	—
Related Topic/Issue	Right to fly the national flag
Related Article/Schedule	19

Flag hoisting – Art. 19(1)(a): Supreme Court Judgement: It held that the right to fly the national flag freely with respect and dignity is a fundamental right of a citizen within the meaning of the freedom of speech and expression guaranteed by Article 19(1)(a). This right is an expression and manifestation of a citizen's allegiance and feelings and sentiments of pride for the nation. However, it cannot be used for commercial purpose or otherwise.

Prakash Singh Case (2006)

Name of the Case	Prakash Singh vs. Union of India
Year of Judgement	2006
Popular Name	—
Related Topic/Issue	Police reforms
Related Article/Schedule	—

Police reforms – seven directives: Supreme Court Judgement: It issued seven directives to the central government, state governments and union territories aimed at bringing in police reforms to ensure that the police machinery functions without any political interference. These are: (i) constitution of a State Security Commission; (ii) Selection of the DGP from amongst the three senior-most officers empanelled by the UPSC for the post and a minimum tenure of two years for the DGP, (iii) a minimum tenure of two years also for the police officers on operational duties, (iv) separation of the investigation police from the law and order police, (v) setting up a Police Establishment Board, (vi) setting up Police Complaints Authority at state and district levels, and (vii) setting up a National Security commission at the central level.

Partial police reforms: Impact of the Judgement: This judgement led to the introduction of police reforms in the country but only partially and not fully. Also, it could not eliminate the political interference in the functioning of the police system, especially in the postings and transfers. Although State Security Commissions and Police Establishment Boards have been set-up in most of the states, they are not very effective in their functioning and lack the authority to make binding recommendations. However, in various cases, the High Courts have issued orders asking the statement governments to comply with the above directives of the Supreme Court.

M. Nagaraj Case (2006)

Name of the Case	M. Nagaraj vs. Union of India
Year of Judgement	2006
Popular Name	—
Related Topic/Issue	Reservation in promotions for SCs and STs
Related Article/Schedule	16 & 335

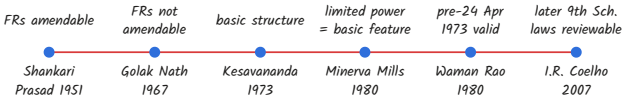
Promotion quota amendments upheld: Supreme Court Judgement: It upheld the constitutional validity of the 77th Amendment Act (1995) the 81st Amendment Act (2000), the 82nd Amendment Act (2000) and the 85th Amendment Act (2001). It said that the impugned Constitutional Amendment Acts by which Article 16(4A) and Article 16(4B) have been inserted flow from Article 16(4). They do not alter the structure of Article 16(4). They retain the controlling factors or the compelling reasons, namely, backwardness and inadequacy of representation which enable the State to provide for reservation keeping in mind the overall efficiency of the State administration under Article 335. These impugned amendments are confined only to Scheduled Castes and Scheduled Tribes. They do not obliterate any of the constitutional requirements, namely, ceiling limit of 50% (quantitative limitation), the concept of creamy layer (qualitative exclusion), the sub-classification between the OBCs on the one hand and the SCs and the STs on the other hand as held in the Indra Sawhney case[19] (1992) and the concept of post-based roster with inbuilt concept of replacement as held in the R.K. Sabharwal case[20] (1995).

Landmark Judgements – II (2007–2013)

I.R. Coelho Case (2007)

Name of the Case	I.R. Coelho vs. State of Tamil Nadu
Year of Judgement	2007
Popular Name	Ninth Schedule case
Related Topic/Issue	Judicial review of the ninth schedule
Related Article/Schedule	31B & Ninth Schedule

Ninth Schedule laws reviewable: Supreme Court Judgement: It reaffirmed its judgement delivered in the Waman Rao case[21] (1980). Therefore, it held that the amendments to the Constitution made on or after 24 April 1973 (i.e., the date of verdict in the Kesavananda Bharati case[22]) by which the Ninth Schedule is amended by inclusion of various laws therein would be open to challenge on the ground that they damage or destroy the basic structure of the Constitution. In addition, it laid down certain tests which are to be applied for deciding the validity of those constitutional amendments. The fundamental question before the court was whether on or after 24 April 1973, when basic structure doctrine was propounded, it is permissible for the Parliament under Article 31B to immunize legislations from fundamental rights by inserting them into the Ninth Schedule and, if so, what is its effect on the power of judicial review of the court.



evolution of Parliament's power to amend and the basic structure doctrine

Aruna Ramachandra Shanbaug Case (2011)

Name of the Case	Aruna Ramachandra Shanbaug vs. Union of India
Year of Judgement	2011
Popular Name	—
Related Topic/Issue	Euthanasia
Related Article/Schedule	21

Passive euthanasia allowed: Supreme Court Judgement: It held that active euthanasia and assisted death are not permissible and hence, continue to be illegal, whereas passive euthanasia is permissible with certain conditions, safeguards and procedure laid down by the court: (i) A decision has to be taken to discontinue life support either by the parents or the spouse or other close relatives, or in the absence of any of them, such a decision can be taken even by a person acting as a next friend or by the doctors attending the patient; (ii) Even if a decision is taken by the near relatives or doctors or next friend to withdraw life support, such a decision requires approval from the High Court concerned; (iii) When such an application is filed, the Chief Justice of the High Court should forthwith constitute a Bench of at least two Judges who should decide to grant approval or not. Before doing so the Bench should seek the opinion of a committee of three reputed doctors to be nominated by the Bench; and (iv) The High Court Bench shall also issue notice to the State and close relatives e.g. parents, spouse, brothers/sisters etc. of the patient, and in their absence his/her next friend, and supply a copy of the report of the doctor's committee to them. After hearing them, the High Court bench should give its verdict.

People's Union for Civil Liberties Case (2013)

Name of the Case	People's Union for Civil Liberties vs. Union of India
Year of Judgement	2013
Popular Name	NOTA case
Related Topic/Issue	Electoral reforms
Related Article/Schedule	14, 19 & 21

Right not to vote – secrecy: Supreme Court Judgement: It held that Rules 41(2) & (3) and 49-O of the Conduct of Election Rules, 1961 (which recognize the right of a voter not to vote) are ultra-vires Section 128 of the Representation of the People Act, 1951 and Article 19(1)(a) of the Constitution to the extent they violate secrecy of voting. Therefore, it directed the Election Commission to provide necessary provision in the ballot papers/EVMs and another button called "None of the Above" (NOTA) may be provided in EVMs so that the voters, who come to the polling booth and decide not to vote for any of the candidates in the fray, are able to exercise their right not to vote while maintaining their right of secrecy. The court made the following observations: (i) In order to protect the right in terms of Section 79(d) and Rule 49-O, viz., "right not to vote", this court is competent to issue directions that secrecy of a voter who decides not to cast his vote has to be protected in the same manner as the Statute has protected the right of a voter who decides to cast his vote in favour of a candidate; (ii) This court is also justified in giving such directions in order to give effect to the right of expression under Article 19(1)(a) and to avoid any discrimination by directing the Election Commission to provide NOTA button in the EVMs; (iii) Article 19 guarantees all individuals the right to speak, criticize, and disagree on a particular issue. It stands on the spirit of tolerance and allows people to have diverse views, ideas and ideologies. Not allowing a person to cast vote negatively defeats the very freedom of expression and the right ensured in Article 21 i.e., the right to liberty; and (iv) Protection of elector's identity and affording secrecy is integral to free and fair elections and an arbitrary distinction between the voter who casts his vote and the voter who does not cast his vote is violative of Article 14.

NOTA option: Impact of the Judgement: Subsequent to this judgement, the Election Commission made provision in the ballot papers/EVMs for None of the Above (NOTA) option. The provision for NOTA has been made since General Election to State Legislative Assemblies of Chhattisgarh, MP, Mizoram, NCT of Delhi and Rajasthan in 2013 and continued in the General Election to State Legislative Assemblies of Andhra Pradesh, Arunachal Pradesh, Odisha and Sikkim in 2014 along with the General Elections to the Sixteenth Lok Sabha (2014)[23].

Landmark Judgements – 12 (2013–2014)

LILY THOMAS CASE (2013)

Name of the Case	Lily Thomas vs. Union of India
Year of Judgement	2013
Popular Name	—
Related Topic/Issue	Criminalization of politics
Related Article/Schedule	102 & 191

Sec. 8(4) RPA struck down: Supreme Court Judgement: It held that the members of the Parliament and the State Legislatures, who have been convicted for offences, will loose their membership of the House immediately (i.e., the disqualification takes place from the date of conviction). It struck down Section 8(4) of the Representation of the People Act, 1951 and declared the same as unconstitutional. Under this Section, the convicted members of the Parliament and the State Legislatures are given three months time to appeal in the higher court and get a stay on their conviction and sentence by the trial court. The court ruled that the Parliament does not have the power under Articles 102 and 191 to make different laws for a person to be disqualified for being chosen as a member and for a person to be disqualified for continuing as a member of the Parliament or the State Legislature. Hence, the above Section 8(4), which carved out a saving in the case of a sitting member from disqualification, is beyond the powers conferred on the Parliament and is ultra vires the constitution.

Immediate disqualification of convicted legislators: Impact of the Judgement: This judgement led to the immediate disqualification of a number of convicted members of the Parliament and the State Legislatures. In order to nullify this ruling of the Supreme Court, the Representation of the People (Second Amendment and Validation) Bill, 2013 was introduced in the Parliament. However, this Bill was later withdrawn by the Government.

T.S.R. Subramanian Case (2013)

Name of the Case	T.S.R. Subramanian vs. Union of India
Year of Judgement	2013
Popular Name	—
Related Topic/Issue	Civil service reforms
Related Article/Schedule	—

Civil service reforms: Supreme Court Judgement: It issued various directions to the central government, state governments and union territories aimed at bringing in civil service reforms for the effective, efficient and transparent administration as well as the accountability and stability of civil servants. These are (i) constitution of the Civil Service Boards to guide and advice the governments on transfers, postings, disciplinary action and other service matters, (ii) providing a fixed minimum tenure of service to various civil servants, and (iii) mandating that the civil servants should not act on the basis of verbal or oral instructions, orders, suggestions, proposals and directions and these should be in writing and also formally recorded if given orally.

Cadre Rules amended (2014): Impact of the Judgement: This judgement led to the making of amendments in Rule 7 of the IAS, IPS and IFoS (Cadre) Rules vide a notification issued in 2014. For the Central Services, the respective Cadre Controlling Authorities have been directed to implement the above directions of the Supreme Court. However, the Civil Service Boards in the States/UTs are not functioning effectively.

NATIONAL LEGAL SERVICES AUTHORITY CASE (2014)

Name of the Case	National Legal Services Authority vs. Union of India
Year of Judgement	2014
Popular Name	—
Related Topic/Issue	Rights of transgender persons
Related Article/Schedule	14 & 21

Third gender recognised: Supreme Court Judgement: It declared Transgenders along with Hijaras/Eunuchs as 'third gender' and held that the fundamental rights granted under Part III of the constitution are equally applicable to them. It also upheld Transgender persons' right to decide their self-identified gender and directed the Central and State Governments to grant legal recognition of their gender identity such as male, female or as third gender. It also directed the Central and State Governments to take steps to treat them as socially and educationally backward classes of citizens and extend all kinds of reservation in cases of admission in educational institutions and for public appointments. The court held that non-recognition of Transgender denies them equal protection of law under Article 14. If further held that Article 21 protects one's right of self-determination of the gender to which a person belongs. In other words, gender identify is integral to the dignity of an individual and is at the core of 'personal autonomy' and 'self-determination'.

Transgender Persons Act 2019: Impact of the Judgement: This judgement led to the enactment of the Transgender Persons (Protection of Rights) Act, 2019. The objective of this act is to provide for protection of rights of transgender persons and their welfare. This act prohibits discrimination against transgender persons and confers right upon them to be recognized as such, and a right to self-perceived gender identity.

Landmark Judgements – 13 (2015–2017)

Shreya Singhal Case (2015)

Name of the Case	Shreya Singhal vs. Union of India
Year of Judgement	2015
Popular Name	—
Related Topic/Issue	Restrictions on online speech
Related Article/Schedule	19

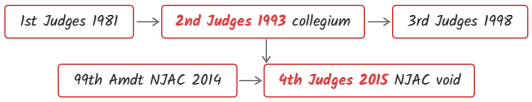
Section 66A struck down: Supreme Court Judgement: It struck down section 66A of the Information Technology Act (2000), which provides punishment for sending offensive messages by any person through a computer resource or a communication device. It held that the section in its entirety is violative of the freedom of speech and expression guaranteed under Article 19(1)(a). It further held that the section is not saved by Article 19(2) as it creates an offence which is vague and over-broad. It also held that the wider range of circulation over the internet cannot restrict the content of the right under Article 19(1)(a) nor can it justify the denial of that right.

SUPREME COURT ADVOCATES-ON-RECORD ASSOCIATION CASE (2015)

Name of the Case	Supreme Court Advocates-on-Record Association vs. Union of India
Year of Judgement	2015
Popular Name	Fourth Judges case or NJAC case
Related Topic/Issue	Appointment of Supreme Court and High Court Judges
Related Article/Schedule	124 & 217

NJAC unconstitutional: Supreme Court Judgement: It declared the 99th Amendment Act (2014) as unconstitutional and void on the ground that it affects the independence of judiciary which is one of the components of the basic structure of the constitution. It also declared the National Judicial Appointments Commission Act (2014) as unconstitutional and void. Further, it declared the earlier 'collegium system' of appointment of judges to the Supreme Court and the High Courts to be operative. It ordered to list the case to consider introduction of appropriate measures, if any, for an improved working of the 'collegium system'.

Collegium revived: Impact of the Judgement: Consequent to this judgement, both the 99th Amendment Act (2014) as well as the National Judicial Appointments Commission Act (2014) became invalid. Therefore, the earlier collegium system of appointment of judges to the Supreme Court and the High Courts was restored.



Shayara Bano Case (2017)

Name of the Case	Shayara Bano vs. Union of India
Year of Judgement	2017
Popular Name	Triple Talaq case
Related Topic/Issue	Divorce in the muslim community
Related Article/Schedule	14

Triple talaq void: Supreme Court Judgement: It declared triple talaq i.e., 'talaq-e-biddat' (the Muslim practice that allows men to instantly divorce their wives) as unconstitutional. It held that this form of talaq is manifestly arbitrary in the sense that the marital tie can be broken capriciously and whimsically by a muslim man without any attempt at reconciliation so as to save it. Therefore, the court held this form of talaq to be violative of the fundamental right contained under Article 14 of the Constitution. Similarly, it declared Section 2 of the Muslim Personal Law (Shariat) Application Act, 1937, as void to the extent that it recognizes and enforces triple talaq. Further, it ruled that triple talaq is against the basic tenets of the Holy Quran and what is held to be bad in the Holy Quran, cannot be good in Shariat and, in that sense, what is bad in theology is bad in law as well. Moreover, the court directed the central government to make a law within six months to govern divorce in the muslim community. Till then, an injunction order of the court against the pronouncement of triple talaq would be in force.

Triple Talaq Act 2019: Impact of the Judgement: This judgement led to the enactment of the Muslim Women (Protection of Rights on Marriage) Act, 2019. This act is popularly known as the Triple Talaq Act. It protects the rights of married Muslim women and prohibits divorce by pronouncing talaq by their husbands.

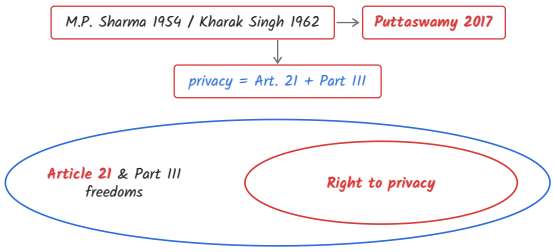
Landmark Judgements – 14 (2017–2018)

K.S. PUTTASWAMY CASE (2017)

Name of the Case	K.S. Puttaswamy vs. Union of India
Year of Judgement	2017
Popular Name	Right to privacy case
Related Topic/Issue	Fundamental right to privacy
Related Article/Schedule	21

Privacy a fundamental right: Supreme Court Judgement: It declared right to privacy as a fundamental right. It ruled that right to privacy is protected as an intrinsic part of right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. It said that privacy safeguards individual autonomy and recognizes the ability of the individual to control vital aspects of his life. However, it also stated that the right to privacy is not an absolute right and hence, is subject to reasonable restrictions which are placed on fundamental freedoms under Part III of the Constitution. This means that a law which encroaches upon privacy will have to withstand the touchstone of permissible restrictions on fundamental freedoms. In the context of Article 21, an invasion of privacy must be justified on the basis of a law which stipulates a procedure which is fair, just and reasonable. The law must also be valid with reference to the encroachment on life and personal liberty under Article 21. An invasion of life or personal liberty must meet the three-fold requirement of: (i) legality, which stipulates the existence of law; (ii) need, defined in terms of a legitimate state aim; and (iii) proportionality, which ensures a rational nexus between the objects and the means adopted to achieve them.

Overruled M.P. Sharma & Kharak Singh: Impact of the Judgement: This judgement over-ruled the two earlier judgements delivered in M.P. Sharma case[24] (1954) and Kharak Singh case[25] (1962). In both the cases, the Supreme Court had held that the right to privacy is not protected by the Constitution. This judgement also clarified that the various judgements subsequent to Kharak Singh, which have recognized the fundamental right to privacy, lay down the correct position of law. Further, this judgement influenced the later judgements delivered by the Supreme Court in Indian Young Lawyers Association case26(2018), Joseph Shine case[27] (2018), Navtej Singh Johar case[28] (2018) and other cases. Based on this judgement, the Supreme Court delivered (in 2018) a separate judgement on the validity of Aadhaar law. This judgement is popularly known as the Aadhaar judgement or Puttaswamy-II judgement. In this judgement, the Supreme Court upheld the constitutional validity of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016. It ruled that the requirement under the Aadhaar Act to give one's demographic and biometric information does not violate the fundamental right of privacy. It said that the Aadhaar Act does not create an architecture for pervasive surveillance and provides protection and safety of the data received from individuals. However, the court struck down certain provisions of the Act and suggested changes. Accordingly, the Aadhaar and Other Laws (Amendment) Act, 2019 was enacted.



privacy protected as an intrinsic part of Article 21 and of the freedoms in Part III (2017)

INDIAN YOUNG LAWYERS ASSOCIATION CASE (2018)

Name of the Case	Indian Young Lawyers Association vs. State of kerala
Year of Judgement	2018
Popular Name	Sabarimala case
Related Topic/Issue	Women's entry into Sabarimala temple
Related Article/Schedule	14, 21 & 25

Sabarimala – women's entry: Supreme Court Judgement: It held that the women of all ages can enter into the Sabarimal temple and worship Lord Ayyappa. It declared that the ban on the entry of women of the age group of 10-50 years into the temple, is unconstitutional. It held that the ban violates the right to equality under Article 14, the right to personal liberty under Article 21 and the right to freedom of religion under Article 25. Accordingly, it struck down Rule 3(b) of the Kerala Hindu places of Public Worship (Authorisation of Entry) Rules, 1965 which prohibits the entry of women into the temple.

Protests and resistance: Impact of the Judgement: This judgement led to the protests and hartals by lakhs of devotees of Lord Ayyappa in Kerala. On the other hand, some women made attempts to enter the temple. But they faced strong resistance from the devotees as well as temple priests and authorities. However, there were some successful attempts also. In November, 2019, the five-judge Sabarimala Review Bench has referred this case to a larger bench for adjudication. Subsequently, a nine-judge Bench was constituted to conduct the hearing on this reference.

JOSEPH SHINE CASE (2018)

Name of the Case	Joseph Shine vs. Union of India
Year of Judgement	2018
Popular Name	—
Related Topic/Issue	Decriminalisation of adultery
Related Article/Schedule	14, 15 & 21

Adultery decriminalised: Supreme Court Judgement: It decriminalised adultery and struck down section 497 of the Indian Penal Code. It declared that this section dealing with the criminalization of adultery, is unconstitutional. It held that this section violates Articles 14, 15 and 21. Further, the court declared that the Section 198(2) of the Code of Criminal Procedure, is also unconstitutional to the extent that it is applicable to the offence of adultery. It observed that when the substantive provision goes, the procedural provision has to pave the same path.

Adultery only a civil wrong: Impact of the Judgement: This judgement has overruled all the previous judgements which had upheld the above Section 497 as constitutionally valid. After this judgement, adultery is no longer a criminal offence attracting up to 5 years' imprisonment. However, it can be considered as a civil wrong and it is a ground for the dissolution of marriage.

Landmark Judgements – 15 (2018-2020)

Navtej Singh Johar Case (2018)

Name of the Case	Navtej Singh Johar vs. Union of India
Year of Judgement	2018
Popular Name	—
Related Topic/Issue	Decriminalisation of homosexuality
Related Article/Schedule	14, 15, 19 & 21

Section 377 read down: Supreme Court Judgement: It decriminalized homosexuality and partly struck down Section 377 of the Indian Penal Code which criminalized carnal intercourse against the order of nature. It held that this Section is unconstitutional in so far as it criminalizes consensual sexual acts of adults of the same sex. It declared that this Section violates the right to equality under Article 14, the right to non-discrimination under Article 15, the right to freedom of expression under Article 19(1)(a) and the right to live a life of dignity and privacy under Article 21. It said that the LGBT (lesbian, gay, bisexual and transgender) persons are entitled to the same fundamental rights as others.

Overruled Suresh Kumar Koushal: Impact of the Judgement: This judgement overruled the earlier judgement delivered in the Suresh Kumar Koushal case[29] (2013). In this case, the Supreme Court had upheld the constitutional validity of the above Section 377. Before this judgement, the members of the LGBT community were compelled to live a life full of fear of reprisal and persecution. Now, they are legally permitted to engage in consensual sexual conduct. Notably, the provisions of the above Section 377 will continue to govern non-consensual sexual acts against adults, all acts of carnal intercourse against minors and acts of bestiality.

M. Siddiq Case (2019)

Name of the Case	M. Siddiq vs. Mahant Suresh Das
Year of Judgement	2019
Popular Name	Ayodhya case
Related Topic/Issue	Ram Janmabhoomi-Babri Masjid land dispute
Related Article/Schedule	—

Disputed land to Ram Lalla: Supreme Court Judgement: It awarded the entire 2.77 acres of the disputed land in Ayodhya to the deity Ram Lalla virajman. It gave the following directions: (i) It directed the Centre to formulate a scheme for the setting-up of a trust for the construction of a Ram Mandir at the disputed site where the centuriesold Babri Masjid stood before its demolition in 1992; (ii) It directed the Centre and UP government to allot an alternative 5 acres of land to the UP Sunni Central Waqf Board at a suitable prominent place in Ayodhya for the construction of a mosque; (iii) It directed that in framing the scheme for the setting-up of the trust, an appropriate representation may be given to the Nirmoni Akhara in such manner as the Centre deems fit. The suit filed by the Akhara claiming shebaiti rights has been held to be barred by limitation and shall accordingly stand dismissed.

End of Ayodhya dispute – temple trust: Impact of the Judgement: This judgement has put an end to the more than a century-old dispute that has shook the communal harmony dimension of the Indian society. Subsequent to this judgement, the Centre announced the formation of the Ayodhya temple trust called as the Shri Ram Janmabhoomi Teerth Kshetra. Similarly, the UP government announced the allocation of 5 acres of land to the UP Sunni Central Waqf Board in Dhannipur, Ayodhya. Further, this judgement has overturned the 2010 Allahabad High Court judgement. The High Court had equally divided the disputed land between the three parties, viz., one-third for Ram Lalla Virajman, one-third for UP Sunni Central Waqf Board and one-third for Nirmohi Akhara.

Anuradha Bhasin Case (2020)

Name of the Case	Anuradha Bhasin vs. Union of India
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Suspension of internet services
Related Article/Schedule	19

Internet & proportionality: Supreme Court Judgement: It held the following: (i) The freedom of speech and expression and the freedom to practice any profession or carry on any trade, business or occupation over the medium of internet enjoys constitutional protection under Article 19(1)(a) and Article 19(1)(g). The restriction upon such fundamental rights should be in consonance with the mandate under Article 19(2) and (6), inclusive of the test of proportionality; (ii) An order suspending internet services indefinitely is impermissible under the Temporary Suspension of Telecom Services (Public Emergency or Public Safety) Rules, 2017. Suspension can be utilized for temporary duration only; (iii) Any order suspending internet issued under the Suspension Rules, must adhere to the principle of proportionality and must not extend beyond necessary duration.

Right to internet access: **Impact of the Judgement:** *This judgement led to the emergence of the right to access to the internet (or right to access to information via the internet) as a fundamental right under the constitution. On the other hand, this judgement also recognized the right of the government to shutdown the internet by adhering to the principle of proportionality. These two situations may create conflicts in the provision of internet services in the country.*

Landmark Judgements – 16 (2020)

Rambabu Singh Thakur Case (2020)

Name of the Case	Rambabu Singh Thakur vs. Sunil Arora
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Criminalisation of politics
Related Article/Schedule	—

Disclose criminal antecedents: **Supreme Court Judgement:** *It issued various directions aimed at curbing the growing incidence of criminals in politics. These are: (i) It shall be mandatory for political parties (at the central and state election level) to upload on their website detailed information regarding individuals (with pending criminal cases) who have been selected as candidates. This should include the nature of the offences and relevant particulars such as whether charges have been framed, the concerned court, the case number etc. The parties should also state the reasons for such selection as well as the reasons for such selection as well as the reasons as to why other individuals without criminal antecedents could not be selected as candidates; (ii) The reasons as to selection shall be with reference to the qualifications, achievements and merit of the candidate concerned and not mere winnability at the polls; (iii) This information shall also be published in one local vernacular newspaper and one national newspaper, and on the official social media platforms of the political party, including Facebook and Twitter.*

Form C-7: **Impact of the Judgement:** *Subsequent to this judgement, the Election Commission sent a communication to all the recognized political parties requiring them to follow the above directions. Further, it also released a new Form C-7 where in the political parties have to provide all the information regarding selected candidates having criminal background.*

INTERNET AND MOBILE ASSOCIATION OF INDIA CASE (2020)

Name of the Case	Internet and Mobile Association of India vs. Reserve Bank of India
Year of Judgement	2020
Popular Name	—
Related Topic/Issue	Ban on crypto currency trading
Related Article/Schedule	19

Crypto ban struck down: **Supreme Court Judgement:** *It struck down a circular issued by the Reserve Bank of India (RBI) that had directed the banks and financial institutions not to deal in virtual currencies (VCs) nor provide services in relation to VCs. It declared the circular as illegal and unenforceable on the ground of proportionality. It said that the RBI itself had not found that the banks and financial institutions have suffered any loss or adversely effected on account of VC exchanges. Further, it also ruled that the circular violates the freedom to carry on trade under Article 19(1)(g). Hence, it declared the circular as unconstitutional.*

Crypto trading resumed: **Impact of the Judgement:** *This judgement removed the ban on crypto currency trading in India. This made the banks and financial institutions to rejoin the virtual currency industry and do the trading. Further, this judgement also brought into focus the need for creating a legal framework for regulating the crypto currency trading and the various issues associated with this industry in India.*

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